BY ORDER OF THE SECRETARY OF THE AIR FORCE

AIR FORCE POLICY DIRECTIVE 10-10

10 JULY 2018

Operations

JOINT USE OF MILITARY AND CIVILIAN FLYING FACILITIES

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(Lt Gen Mark C. Nowland)

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This policy directive implements Title 49, United States Code (USC) sections 44502, 47103 and 47107. It applies to all United States Air Force (USAF), Air National Guard (ANG) and Air Force Reserve Command (AFRC) installations. It also applies when civil aircraft use Air Force (AF) ramps at civil airports hosting USAF, ANG and AFRC units. Ensure all records created as a result of processes prescribed in this publication are maintained in accordance with Air Force Manual 33-363, *Management of Records*, and disposed of in accordance with the Air Force Records Information Management System Records Disposition Schedule. Send all recommendations for changes or comments about this publication to the Office of Primary Responsibility using AF Form 847, *Recommendation for Change of Publication*; route AF Form 847 from the field through the appropriate functional chain of command.

SUMMARY OF CHANGES

This publication has been substantially revised and must be completely reviewed. This version supersedes all previous versions of Air Force Policy Directive 10-10. It deletes references to Commercial Activity on Military Installations Contracts.

1. Policy. The Air Force will manage programs to grant civil aircraft access to military airfields, to include civil aircraft landing permits and airfield joint-use agreements.

1.1. Landing Permits. Landing permits will be issued for civil aircraft operating in support of official government business, for a one-time situation or for a limited duration. Other types of use may be authorized if justified by exceptional circumstances. Note: Civil aircraft access to Air Force airfields on foreign territory requires host nation approval.

1.2. Joint Use Agreements are developed for two types of routine joint airfield use: civil use of military airfields and military use of civil airfields.

1.2.1. Civil Use of Military Airfields. Civil use of the airfield infrastructure will be considered, when the proposed use does not compromise operations, security, readiness, safety, environment or quality of life, and the sponsoring government agency has sufficient financial resources to address costs associated with their use of the flying facilities. The Air Force only invests in the necessary infrastructure to meet its operational mission requirements. Local government representatives eligible to sponsor a public airport are the only recognized representatives to submit a request for use of Air Force airfields.

1.2.2. Military Use of Civil Airfields. The Air Force may operate at no cost from airports that have received United States Government funding under the provisions of 49 USC § 47107 except when the use is substantial. Where the Air Force has a need for substantial use of a civilian airport, an agreement will be negotiated to outline responsibilities, rights and applicable fees. In negotiating such agreements, the parties will take into consideration length of expected use and any associated permanently based (longer than one year) presence.

1.3. Airport Operations Agreements. The Air Force may have the need to conduct occasional operations from an airport or flying facility that is not supported by the federal government. An airport operations agreement may be negotiated with the managing director of the facility to outline responsibilities. This type of agreement may be negotiated locally if it does not involve any fees or other transfer of resources (such as fuel fees, leases, etc.) and does not involve a continuous use or reach the level of substantial use (300 or more aircraft operations in one calendar month) by all combined federal users. An operation is defined as a takeoff or landing.

2. Roles and Responsibilities:

2.1. The Assistant Secretary of the Air Force for Installations, Environment, and Energy (SAF/IE) is responsible for installation and facility policy, policy for Air Force joint use programs, and committing access for the use of Air Force infrastructure. SAF/IE is responsible for establishing policy for the Air Force's joint use programs. SAF/IE will:

2.1.1. Provide oversight regarding joint use flying facilities.

2.1.2. Serve as the final approval authority for all joint use agreements and airport operations agreements. This approval authority may not be delegated for military airports. For joint use agreements and airport operations agreements at civil airports, negotiation authority and approval authority may be delegated on a case by case basis to the Major Command level, but no lower.

2.1.3. Review all policy for adherence to Federal Aviation Administration guidance and Air Force operational requirements, and issue updates as necessary.

2.1.4. Ensure an annual review is completed on the status of all agreements to ensure compliance with negotiated terms, fee structure and payments, and assess the operational impacts of each agreement.

2.1.5. Ensure a review is accomplished for all deviations from proportional payments for fair use of jointly approved flying facilities fee structures.

2.1.6. Ensure a lead office is designated when multiple Air Force units share a common civil aviation facility. When more than one service or federal agency is involved, the Air Force will coordinate with service counterparts and federal agencies to designate the lead federal agency.

2.1.7. Ensure a review is accomplished and approval granted for National Environmental Policy Act documentation in support of decision-making prior to granting access to, and use of, Air Force infrastructure, pursuant to Title 32 Code of Federal Regulations Part 989, Environmental Impact Analysis Process.

2.2. Deputy Chief of Staff, Operations (AF/A3) will:

2.2.1. Ensure a review is accomplished of the operational impacts associated with the mixed military/civil use of airfields.

2.2.2. Ensure all impacts have been considered and addressed before forwarding a joint use proposal or agreement to SAF/IE.

2.2.3. Ensure a determination is made of the level of decision authority for landing permits and delegate authority as necessary to Major Commands and installation commanders.

2.2.4. Ensure all requests for exceptions or waivers to this policy directive and related Air Force instructions are processed unless otherwise delegated.

2.2.5. Ensure an annual review of all agreements is facilitated to evaluate adherence to each agreement's terms and fees.

2.3. Deputy Chief of Staff, Logistics, Engineering and Force Protection (AF/A4), will:

2.3.1. Ensure a review is made of all proposed active duty agreements and renewals.

2.3.2. Ensure a review is made on all proposed airfield joint use agreements for compliance with the Environmental Impact Analysis Process (draft and final) and interrelated environmental and installation planning considerations for civilian operations on military airfields. Advises and assists SAF/IE and AF/A3 with execution of the Environmental Impact Analysis Process and planning related issues.

2.4. The Secretary of the Air Force, General Counsel (SAF/GC) shall:

2.4.1. Provide legal advice to the Secretary of the Air Force concerning all matters associated with real property law, joint use federal regulations and other applicable legal requirements.

2.4.2. SAF/GC is the principal legal advisor to the Secretary of the Air Force with respect to all legal issues and regulatory requirements relevant to the Air Force, and as appropriate advises Headquarters Air Force and SAF/IE on civil use of Air Force flying facilities and Air Force aircraft use of civil flying facilities and related services.

2.5. Major Commands, including the Air National Guard and Air Force Reserve Command, will manage the program to effectively carry out this policy.

3. There will be only one Air Force Agreement supporting military operations at a single civil airport. When more than one Air Force unit regularly uses a civil aviation facility (more than 10% of total airport operations), SAF/IE will ensure a lead unit is designated who will account for the use of all Air Force activities and lead discussions with civil airport officials at the respective civil airport.

4. Exceptions. The following exception to paragraph **1.1** apply:

4.1. Any aircraft operator with an in-flight emergency may land at any Air Force airfield without prior authorization. An in-flight emergency is defined as a situation that makes continued flight hazardous.

HEATHER WILSON
Secretary of the Air Force

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

49 United States Code §§ 44502, 47103, and 47017

Title 32 Code of Federal Regulation Part 989, Environmental Impact Analysis Process

Prescribed Forms

None

Adopted Forms

AF Form 847, *Recommendation for Change of Publication*